

		Based on the above, the demurrer to the Second Cause of Action is SUSTAINED. Plaintiff's latest attempt to amend his complaint has resulted in frivolous allegations being substituted in and previously rejected allegations being reasserted. Thus, the Court finds Plaintiff has no reasonable possibility of amending the complaint to assert a meritorious cause of action. Therefore, leave to amend is DENIED.
10.	MCMILLAN VS. R.W. SHELBY & CO., INC. 2026-01540339	1. DEMURRER TO COMPLAINT Defendants R.W. Selby & Co., Inc.; Chris Cordova; Shannon Fernadnez; and 30122 Niguel Apartments, LLC's Demurrer is OVERRULED. Defendants demur to the second through fourth causes of action on the ground Plaintiffs failed to adequately allege a landlord-tenant relationship which in an essential element of each cause of action. "A cardinal rule of pleading is that only the ultimate facts need be alleged." (<i>Ludgate Ins. Co. v. Lockheed Martin Corp.</i> (2000) 82 Cal.App.4th 592, 606.) Plaintiffs have plead sufficient ultimate facts to allege Defendants are Plaintiffs' landlord. Plaintiffs allege the parties "were in a landlord-tenant relationship created by a written lease agreement ('Lease')." (Compl., ¶ 23.) Thus, Defendants' demurrer is overruled. 2. MOTION TO STRIKE PORTIONS OF COMPLAINT Defendants R.W. Selby & Co., Inc.; Chris Cordova; Shannon Fernadnez; and 30122 Niguel Apartments, LLC's Motion to Strike Portions of the Complaint is DENIED. Defendants seek to strike references to punitive damages in the Complaint. A demand for punitive damages for the commission of any tort requires more than the mere allegation of the "oppression, fraud, and malice" language found in Civil Code section 3294. (See <i>Perkins v Superior Court</i> (1981) 117 Cal.App.3d 1, 6-7.) "[F]acts must be alleged in the pleading to support such a claim." (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166.) The facts alleged must show the defendant "act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights." (<i>Silberg v. California Life Ins. Co.</i> (1974) 11 Cal.3d 452, 462.) Section 3294, subdivision (c) defines malice, oppression and fraud as follows: "(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust

		hardship in conscious disregard of that person's rights. [¶] (3) ‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” Plaintiffs’ allegations are sufficient to support a claim for punitive damages. Plaintiffs allege they notified Defendants numerous times of repeated leaks and flooding in the premises. (Compl., ¶ 3.) Defendants delayed remediating the leaks and flooding, failed to do any mold testing, failed to properly inspect the premises, failed to address the cause of the leaks, and failed to take precautions to prevent additional mold growth. (Compl., ¶ 3.) Defendants were notified of toxic mold in Plaintiffs’ apartment in October 2024 and their remediation failed to properly remove the mold. (Compl., ¶¶ 1-2.) The mold issue persisted until at least March 2025, and Defendants demanded continued payment of rent without properly remediating the mold of leaks. (Compl., ¶¶ 4, 16.) The allegations are sufficient to allege a conscious disregard for Plaintiffs’ health. Accordingly, Defendants’ Motion to Strike is denied.
12.	ECKHOFF VS. FAMILIES FORWARD 202601574381	ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION Petitioner Stephanie Eckhoff seeks a Preliminary Injunction restraining and enjoining Respondent Families Forward from taking any action to further terminate her program status or her continued possession of the premises located at 17 Cascade, Irvine, CA 92605 is CONTINUED to July 14, 2026, at 9:00 a.m., in Department C32. <u>Factual Background:</u> On June 2, 2026, Petitioner filed a verified Petition for Writ of Administrative Mandamus against Respondent Families Forward, challenging Families Forward’s termination of Petitioner’s enrollment in the Rapid Rehousing Plus Program. (Petition for Writ of Administrative Mandate (“Petition”), ¶ 12, 28.) Petitioner contends she has a documented mental health disability and that she and her two minor children (one of whom has since turned 18 and one of whom is 12 years old) experienced chronic homelessness prior to January 2025. (Petition, ¶¶ 9, 10.) On January 22, 2025, Petitioner was enrolled in the Rapid Rehousing Plus program administered by Families Forward. (Petitioner, ¶ 12.) Petitioner’s enrollment in the program was terminated on February 28, 2026. (Petitioner’s Decl., ¶ 19.) Petitioner contends Families Forward (1) violated 24 C.F.R. § 576.402 by terminating Petitioner’s rental assistance without providing written notice, without stating clear reasons for termination, and without providing Petitioner with an opportunity to present objections before an impartial decision-maker; (2) violated HUD HMIS data standards and CES requirements; and

(3) abused its discretion and failed to proceed in a manner required by law.

On June 16, 2026, the court granted Petitioner's request for a Temporary Restraining Order thereby restraining and enjoining Respondent from taking any action to further terminate Petitioner's status within the program or Petitioner's continued possession of the premises at 17 Cascade, Irvine, CA 92605. (ROA 31.)

Legal Standard:

The burden is on the party "seeking injunctive relief, to show all elements necessary to support issuance of a preliminary injunction." (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) "A trial court considers two interrelated factors when determining whether to issue a preliminary injunction: '(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. [Citations.]' [Citation.] These two factors 'are described as *interrelated* factors because the greater the plaintiff's showing on one, the less must be shown on the other to obtain an injunction. [Citation.] The goal of this test is to minimize the harm that an erroneous interim decision would cause. [Citations.]' [Citation.]" (*Mae M. v. Komrosky* (2025) 111 Cal.App.5th 198, 213.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) "A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim." (*Ibid.*)

Code of Civil Procedure section 1094.5, subdivision (g), provides in relevant part, "the court in which proceedings under this section are instituted may stay the operation of the administrative order or decision pending the judgment of the court, or until the filing of a notice of appeal from the judgment or until the expiration of the time for filing the notice, whichever occurs first. However, no such stay shall be imposed or continued if the court is satisfied that it is against the public interest." This statute "unequivocally requires the superior court weigh the public interest in each individual case." (*Sterling v. Santa Monica Rent Control Bd.* (1985) 168 Cal.App.3d 176, 187.) The court is required to weigh "the public interest when considering whether to grant the request for a preliminary injunction." (*Am. Indian Model Schs. v. Oakland Unified Sch. Dist.* (2014) 227 Cal.App.4th 258, 295.)

"The merits of the application for preliminary injunction necessarily hinge upon the merits of the petition for mandamus." (*Env't Prot. Info. Ctr., Inc. v. Johnson* (1985) 170 Cal.App.3d 604, 614, fn. 6.) Here, the Petition references exhibits H (§ 10), K (§§18, 44(d)); L (§§ 23, 24), and D (§ 30). Additionally, Petitioner's declaration attached to

	the Petition references Exhibit J in paragraph 43. However, none of these exhibits were filed with the Petition or Petitioner's declaration. (ROA 1.) The court cannot determine the merits of the Petition without the referenced exhibits upon which Petitioner's arguments are based. Therefore, the court continues the hearing to allow Petitioner to file the missing exhibits. Petitioner is to file the missing exhibits no later than 7 days before the continued hearing. The Temporary Restraining Order issued on 6-16-26 to remain in effect until the continued hearing. Petitioner to give notice.
--	---